

108	Fan vs. Cybercoders, Inc. 2021-01207940	Motion for Final Approval The Court has reviewed the supplemental materials provided by Plaintiff’s counsel and finds that they substantially address the identified concerns. Accordingly, Plaintiff Wayne Eric Fan’s Motion for Approval of PAGA Settlement is GRANTED. This is a PAGA-only action. On June 29, 2021, Plaintiff Wayne Eric Fan, an individual, for himself, on behalf of all others similarly situated, and as aggrieved employees under the California Private Attorney General Act (“Plaintiff”), filed a Complaint for Damages against Defendant Cybercoders, Inc. (“Defendant”). The Complaint alleges six causes of action for various wage-and-hour individual and representative PAGA claims on behalf of Plaintiff and the aggrieved employees. On February 7, 2022, Defendant moved to compel arbitration of Plaintiff’s individual claims on the ground the parties had entered into an arbitration agreement that encompassed all claims asserted in the Complaint. At the hearing on August 12, 2022, the Court granted the motion in part and ordering Plaintiff’s individual claims to arbitration and staying the representative PAGA claims. In April 2023, the parties agreed to mediate the representative PAGA claims, and they reached a settlement after engaging in mediation on October 23, 2023. On May 14, 2024, Plaintiff filed the current Motion for Approval of PAGA Settlement. The Motion seeks approval of the parties’ Joint Stipulation of PAGA Settlement and Release for the non-reversionary Gross Settlement Amount of \$245,000.00. The settlement group consists of 418 PAGA Members comprised of: “All persons employed by Cybercoders, Inc. in the State of California in non-exempt positions from April 25, 2020, and December 22, 2023.” Based on the representations of Plaintiff’s counsel and a review of the Settlement Agreement, the Court concludes that the \$245,000.00 PAGA Settlement is fair and reasonable. The Court also concludes that total PAGA penalties in the amount of \$143,982.45 are fair and reasonable, and seventy-five percent (75%) will be paid to the Labor and Workforce Development Agency (“LWDA”) in settlement of all representative claims alleged by or on behalf of Plaintiff and the PAGA Members. Accordingly, the Court approves the following awards and disbursements from the Gross Settlement Amount:
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- Attorneys' fees of \$80,850.00 to Plaintiff's Counsel, Law Offices of Richard Kim, P.C.
- Litigation costs of \$12,167.55 to Plaintiff's Counsel, Law Offices of Richard Kim, P.C.
- Settlement administration costs of \$7,500.00 to CPT Group, Inc.
- Plaintiff's PAGA Representative Service Award of \$500 to Plaintiff Wayne Eric Fan
- PAGA penalties of \$107,986.84 to the LWDA

The amount equal to twenty-five percent (25%) of the total PAGA Penalties is \$35,995.61. This amount is to be distributed to the PAGA Members in accordance with the terms of the Settlement Agreement.

The Final Accounting hearing is set for May 21, 2026, at 2:00 p.m. in Department CX102. Plaintiff's counsel must submit a final report regarding distribution of the settlement funds at least fourteen (14) calendar days prior to the hearing regarding the status of the settlement administration. The final report must include all information necessary for the Court to determine the total amount actually paid to PAGA Members and any uncashed funds remitted to the State Controller's Office. If the uncashed funds are not fully disbursed by the report deadline, counsel must request a continuance of the Final Accounting hearing.

Within five (5) court days, Plaintiff's counsel must submit for the Court's signature a revised Proposed Order Granting Approval of PAGA Settlement and Judgment with the following corrections:

- Final Accounting hearing date in accordance with this ruling;
- Revision of the PAGA Representative Service Award / Incentive Award in accordance with this ruling;
- A statement that the continuing jurisdiction of the Court is pursuant to CCP § 664.6 and CRC 3.769(h);
- Delete Paragraph 21 and language regarding dismissal of the action with prejudice.

Plaintiff to give notice, including to the LWDA, of this ruling, and file proof of service within five (5) calendar days of the date the Order and Judgment is entered.